

2026:PHHC:086841



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM M-25747 of 2023**Reserved on:-28.04.2026****Date of Decision:08.06.2026**

Ashu Alias Ashish Katyal

...Petitioner (s)

Vs.

Mahinder Singh

...Respondent(s)

CORAM : HON'BLE MR. JUSTICE N.S.SHEKHAWAT

Present : Mr. Mansur Ali, Sr. Advocate with
Mr. Tushar Madaan, Advocate
for the petitioner.

Mr. Sanjeev Goyal, Advocate
for the respondent.

N.S.SHEKHAWAT, J.

1. The petitioner has filed the present petition under Section 482 Cr.P.C., with the prayer to quash the impugned complaint (Annexure P-6) titled as '*Mahinder Singh Vs. Ashu and another*' under Section 458, 452, 307, 323, 506, 511, 34 and 120-B I.P.C., Sections 3/4 of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 (hereinafter to be referred as '**the SC and ST Act**') and Sections 25, 54 and 59 of Arms Act, the consequential summoning order dated 24.03.2023 (Annexure P-7) passed by learned Chief Judicial Magistrate, Sangrur in impugned Complaint and all consequential proceedings arising therefrom.

2. Learned counsel for the petitioner contended that the petitioner has been falsely involved in the complaint (Annexure P-6) filed by the respondent/complainant, who alleged that he used to iron the

clothes of the petitioner and his family members since last several years. Even, the petitioner had good relations with the respondent and he was aware of the acts of the respondent. On 20.11.2017, the mother of the petitioner called up the respondent and asked him as to why he did not collect the clothes of her house. He replied that he was an old man and could not continue the work of ironing the clothes. On the same day at about 8/9 p.m., petitioner No. 1 came at a motorcycle with some unknown persons and forcibly entered the house. The petitioner threatened him as to why he had stopped the ironing the clothes of his family and used caste-related derogatory words against him. He even slapped the respondent and threatened him by showing his pistol. He threatened that he would kill him by using his pistol and while showing the pistol, he came in the public street also. General public was also there. The respondent informed the police authorities in this regard, but no action was taken by the police. During the course of trial, the complainant examined Pardeep Kumar, Certificate Clerk, who proved the schedule caste certificate of the complainant as Mark 'A'. Constable Mandeep Singh proved the copy of the application dated 04.12.2017 moved by the respondent as Ex. C2, inquiry report as Ex. C3, inquiry conducted by SHO as Ex. C4 and copies of the statements as Ex. C5 to C9. CW3 Sanjeev Kumar, Registration Clerk, proved the copy of the sale deed of house of Saroj Rani as Ex. C-10. CW4, Constable Dalbir Singh also brought the summoned record regarding DDR No. 25 dated 05.12.2017 and proved the copy of the same as Ex. C-11, *calendra* as Ex. C-12 and application moved by Shashi, son of respondent on the

basis of which DDR No. 25 Ex. C-13 was recorded. CW5 Mohit Kumar, Clerk, LPA Branch, DC Office, Sangrur, placed on record the armed license of the petitioner as Ex. CW5/A. The respondent Mahinder Singh appeared as CW6 and supported the case of the prosecution in totality. His daughter-in-law Gurwinder Kaur alias Pinky also supported his statement. After the preliminary evidence, vide the impugned order dated 17.09.2021, the petitioner and co-accused were ordered to be summoned to face trial under Sections 458, 323, 506 read with Section 34 IPC and 3/4 the SC and ST Act.

3. Learned counsel for the petitioner further contended that after the alleged occurrence, the respondent moved a complaint dated 20.11.2017 (Annexure P-1) to the police and no such allegations were mentioned by him. Ultimately, the inquiry was conducted by the SHO Police Station City Sangrur and a detailed inquiry dated 14.01.2018 (Annexure P2) was prepared. In the inquiry report, it was found that the respondent and his son Shashi had only verbal arguments with the petitioner and his friend and the security proceedings have already been initiated against the petitioner and his son in this regard. However, the allegations regarding use of caste-related derogatory words by the petitioner were found to be false. The respondent also moved various complaints to statutory authorities and, ultimately, the case was again inquired by the DSP Sub-Division, Sangrur, who again prepared a report dated 18.01.2018 and the allegations regarding use of pistol or threat by the petitioner were found to be false. Even, it was discovered that the petitioner had not used the derogatory words on the basis of caste to the

respondent and it was found to be a case of verbal duel between the parties. However, while improving his case, the respondent filed the present complaint (Annexure P-6) before the Court of Chief Judicial Magistrate, Sangrur, which is liable to be quashed by this court. Learned counsel for the petitioner further contended that from a bare perusal of the complaint, it is evident that the alleged occurrence had taken place inside the house of the respondent and not in public view and the ingredients of the offence under Section 3/4 of the SC and ST Act were not made out. Even, it has been alleged that the petitioner had beaten up the complainant but no medical examination of the respondent was conducted by the doctors. Apart from that, even the respondent and the petitioner were having good relations for the last several years and it can never be said that he had committed trespass of any kind. Apart from that, the petitioner had allegedly threatened the respondent and such threat was not followed by any other overt act. Consequently, no offence under Section 506 IPC is made out against the petitioner.

4. On the other hand, learned counsel for the respondent has vehemently opposed the submissions made by the learned counsel for the petitioner on the ground that at the stage of summoning, the Magistrate was only to examine that there were sufficient grounds for proceeding with the matter and not to see whether there were sufficient grounds for conviction of the accused. In the present case, the Magistrate had held a detailed inquiry on the basis of the preliminary evidence and came to a conclusion that a *prima facie case* under Sections 458, 323, 506 read with Section 34 IPC and 3/4 the SC and ST

Act is made out against the petitioner. Apart from that, even the petitioner had raised his defence at the stage of summoning and the defence raised by the complainant cannot be examined, at this stage. Thus, the present petition is liable to be dismissed by this court.

5. I have heard learned counsel for the parties and perused the record carefully.

6. In the present case, the respondent No. 2 belongs to Scheduled Castes and Scheduled Tribes community and the petitioner has been charged with the offence under Section 3 of the SC and ST Act. However, merely because of the fact that the petitioner belongs to a Scheduled Castes and Scheduled Tribes, would not be sufficient to attract the offence under Section 3 of the SC and ST Act as existence of an intention to humiliate the victim due to his caste identity is *sine qua non* for the same. Even, there was nothing to suggest that the petitioner had used caste-related words, which were aimed at insulting the respondent on the basis of his caste identity. The Hon'ble Supreme Court has held in the matter of ***Shajan Skaria v. State of Kerala 2024 SCC Online SC 2249*** as under:-

"61. The words "with intent to humiliate" as they appear in the text of Section 3(1)(r) of the Act, 1989 are inextricably linked to the caste identity of the person who is subjected to intentional insult or intimidation. Not every intentional insult or intimidation of a member of a SC/ST community will result into a feeling of caste-based humiliation. It is only in those cases where the intentional insult or intimidation takes place either due to the prevailing practice of untouchability or to reinforce the historically entrenched ideas like the superiority of the "upper castes"

over the "lower castes/untouchables", the notions of 'purity' and 'pollution', etc. that it could be said to be an insult or intimidation of the type envisaged by the Act, 1989.

62. We would like to refer to the observations of this Court in Ram Krishna Balothia (supra) to further elaborate upon the idea of "humiliation" as it has been used under the Act, 1989. It was observed in the said case that the offences enumerated under the Act, 1989 belong to a separate category as they arise from the practice of 'untouchability' and thus the Parliament was competent to enact special laws treating such offences and offenders as belonging to a separate category. Referring to the Statements of Objects and Purposes of the Act, 1989 it was observed by this Court that the object behind the introduction of the Act, 1989 was to afford statutory protection to the Scheduled Castes and the Scheduled Tribes, who were terrorised and subjected to humiliation and indignation's upon assertion of their civil rights and resistance to the practice of untouchability. For this reason, mere fact that the person subjected to insult or intimidation belongs to a Scheduled Caste or Scheduled Tribe would not attract the offence under Section 3(1)(r) unless it was the intention of the accused to subject the concerned person to caste-based humiliation.

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69. What appears from the aforesaid discussion is that the expression "intent to humiliate" as it appears in Section 3(1)(r) of the Act, 1989 must necessarily be construed in the larger context in which the concept of humiliation of the marginalised groups has been understood by various scholars. It is not ordinary insult or intimidation which would amount to 'humiliation' that is sought to be made punishable under the Act, 1989. The Parliament, by way of different legislations, has over the years sought to target humiliation based on different grounds and identities which

exist in the society. The Protection of Women from Domestic Violence Act, 2005 seeks to punish humiliation based on gender inequalities by specifically including the term 'humiliation' in the definition of "domestic violence". Similarly, The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 includes treatment causing humiliation to a female employee and which may likely affect her health and safety within the definition of sexual harassment.

70. In our considered view, it is in a similar vein that the term 'humiliation' as it appears in Section 3(1)(r) of the Act, 1989 must be construed, that is, in a way that it deprecates the infliction of humiliation against members of the Scheduled Castes and Scheduled Tribes wherein such humiliation is intricately associated with the caste identity of such members."

7. Apart from that, in the present case, the alleged occurrence had taken place in the house of the respondent and it has been simply stated that while using the derogatory words, the petitioner had come in the street also. However, no witness from the public has been examined by the complainant/respondent in the present case and there is no evidence to show that the occurrence had taken place at any place within public view.

8. Elaborating on the term 'public view', as used in section 3(1)(r) of the SC/ST Act, a two Judge bench of the Hon'ble Supreme Court in *Karuppudayar v. State Rep. By The Deputy Superintendent of Police and others* 2025 (1) RCR (Criminal) 813, speaking through Justice B.R. Gavai, opined as follows:

"9. A perusal of Section 3(1)(r) of the SC-ST Act would reveal that for constituting an offence thereunder, it has to

be established that the accused intentionally insults or intimidates with intent to humiliate a member of a Scheduled Caste or a Scheduled Tribe in any place within public view. Similarly, for constituting an offence under Section 3(1)(s) of the SC-ST Act, it will be necessary that the accused abuses any member of a Scheduled Caste or a Scheduled Tribe by caste name in any place within public view.

*10. The term "any place within public view" initially came up for consideration before this Court in the case of **Swaran Singh and others v. State through Standing Counsel and another**, (2008) 8 SCC 435. This Court in the case of **Hitesh Verma v. State of Uttarakhand and another**, (2020) 10 SCC 710 referred to **Swaran Singh** (supra) and reiterated the legal position as under:*

*"14. Another key ingredient of the provision is insult or intimidation in "any place within public view". What is to be regarded as "place in public view" had come up for consideration before this Court in the judgment reported as **Swaran Singh v. State** [**Swaran Singh v. State**, (2008) 8 SCC 435 : (2008) 3 SCC (Cri) 527]. The Court had drawn distinction between the expression "public place" and "in any place within public view". It was held that if an offence is committed outside the building e.g. in a lawn outside a house, and the lawn can be seen by someone from the road or lane outside the boundary wall, then the lawn would certainly be a place within the public view. On the contrary, if the remark is made inside a building, but some members of the public are there (not merely relatives or friends) then it would not be an offence since it is not in the public view (sic) (Ed.: This sentence appears to be contrary to what is stated below in the extract from **Swaran Singh**, (2008) 8 SCC 435, at p. 736d-e, and in the application of this principle in para 15, below:"Also, even if the remark is*

made inside a building, but some members of the public are there (not merely relatives or friends) then also it would be an offence since it is in the public view.") The Court held as under: (SCC pp. 443-44, para 28)

"28. It has been alleged in the FIR that Vinod Nagar, the first informant, was insulted by Appellants 2 and 3 (by calling him a "chamar") when he stood near the car which was parked at the gate of the premises. In our opinion, this was certainly a place within public view, since the gate of a house is certainly a place within public view. It could have been a different matter had the alleged offence been committed inside a building, and also was not in the public view. However, if the offence is committed outside the building e.g. in a lawn outside a house, and the lawn can be seen by someone from the road or lane outside the boundary wall, the lawn would certainly be a place within the public view. Also, even if the remark is made inside a building, but some members of the public are there (not merely relatives or friends) then also it would be an offence since it is in the public view. We must, therefore, not confuse the expression "place within public view" with the expression "public place". A place can be a private place but yet within the public view. On the other hand, a public place would ordinarily mean a place which is owned or leased by the Government or the municipality (or other local body) or gaon sabha or an instrumentality of the State, and not by private persons or private bodies.

"It could thus be seen that, to be a place 'within public view', the place should be open where the members of the public can witness or hear the utterance made by the accused to the victim. If the alleged offence takes place within the four corners of the wall where members of the public are not present, then it cannot be said that it has taken place at a place within public view."

(emphasis added)

9. Apart from that, the petitioner has also been summoned under Sections 323 and 506 IPC. Section 323 IPC prescribes punishment for voluntarily causing hurt, which has been defined under Section 319 IPC. Although the respondent alleged that such incident was witnessed by many persons and he was beaten up by the petitioner, however, the petitioner cannot be summoned on the basis of such a general and vague allegation. Even, there is no medical evidence on record to suggest that the respondent had suffered any injury on his person. Apart from that, even it was alleged that the petitioner had also threatened the respondent by showing his pistol, however, such threat was not followed by any overt act in the present case and the law is well settled that such empty threats do not make any offence under Section 506 IPC. Even admittedly, the petitioner had initially made a complaint (Annexure P-1) to the police with regard to the same occurrence. However, from perusal of the first complaint (Annexure P-1), which was submitted by respondent, it is apparent that no such allegations were leveled by the respondent in the said complaint. There is no allegation in the initial version that the petitioner had humiliated the respondent on the ground that he belonged to a scheduled caste, nor there is any allegation that he had used the caste-related derogatory words. Now, the said complaint and FIR even filed by the respondent was investigated by the SHO as well as the DSP and two detailed reports (Annexures P-2 and P-4) were prepared by both of them. During inquiry by the police also, it was found that it was a case of exchange of hot words between both the parties and there was no evidence to suggest that the petitioner had

raised his pistol to threaten the respondent. Apart from that, it was also found that the allegations regarding use of derogatory words by the present petitioner were false and unsubstantiated.

10. Thus, in view of the above discussion and the law laid down by the Hon'ble Supreme Court, this Court has no hesitation to hold that the present petition deserves to be allowed.

11. Consequently, the present petition is allowed and the impugned complaint (Annexure P-6) titled as '*Mahinder Singh Vs. Ashuand another*' under Section 458, 452, 307, 323, 506, 511, 34 and 120-B I.P.C., Sections 3/4 of Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 (hereinafter to be referred as '**the SC and ST Act**') and Sections 25, 54 and 59 of Arms Act, the consequential summoning order dated 24.03.2023 (Annexure P-7) passed by learned Chief Judicial Magistrate, Sangrur in impugned Complaint and all consequential proceedings arising therefrom are ordered to be quashed qua the petitioner only.

12. Pending applications, if any, stand also disposed of, accordingly.

08.06.2026
amit rana

(N.S.SHEKHAWAT)
JUDGE

Whether reasoned/speaking	:	Yes/No
Whether reportable	:	Yes/No